



FEDERAL PUBLIC SERVICE COMMISSION
COMPETITIVE EXAMINATION-2024 FOR RECRUITMENT
TO POSTS IN BS-17 UNDER THE FEDERAL GOVERNMENT

Roll Number

CONSTITUTIONAL LAW

TIME ALLOWED: THREE HOURS

PART-I (MCQs) : MAXIMUM 30 MINUTES

(PART-I MCQs) MAXIMUM MARKS: 20

(PART-II) MAXIMUM MARKS: 80

NOTE: (i) First attempt PART-I (MCQs) on separate OMR Answer Sheet which shall be taken back after 30 minutes.

(ii) Overwriting/cutting of the options/answers will not be given credit.

(iii) There is no negative marking. All MCQs must be attempted.

PART-I (MCQs)(COMPULSORY)

Q.1. (i) Select the best option/answer and fill in the appropriate Box ☐ on the OMR Answer Sheet.(20x1=20)
(ii) Answers given anywhere else, other than OMR Answer Sheet, will not be considered.

- Which theory of constitutional interpretation emphasizes interpreting the Constitution according to the original intent of its framers?
(A) Golden theory (B) Textualism (C) Originalism (D) None of these
- What constitutional concept ensures that government actions are constrained by established laws and procedures?
(A) Separation of Powers (B) Ex Post Facto Law (C) Due Process (D) None of these
- Which constitutional concept suggests that the fundamental rights of citizens are not absolute and can be subject to reasonable restrictions in the interest of public welfare?
(A) Proportionality (B) Rule of Law (C) Judicial activism (D) None of these
- In which country does the head of state hold significant executive power, unlike the largely symbolic monarchs of the United Kingdom?
(A) Russia (B) France (C) Turkey (D) None of these
- Which country's constitution grants broad powers to the legislature with limited judicial review to strike down laws?
(A) China (B) France (C) United States of America (D) None of these
- In a cohabitation scenario in France, which of the following statements correctly describes the relationship between the President and the Prime Minister?
(A) The President holds all major executive power and the Prime Minister serves mainly as an advisor.
(B) The President controls foreign policy and defense, while the Prime Minister governs domestic affairs.
(C) They share executive power equally with each other having authority over different policy areas.
(D) None of these
- Which country's constitution grants extensive powers to the judiciary including the ability to issue advisory opinions and influence policymaking?
(A) United Kingdom (B) Russia (C) United States of America (D) None of these
- Which organ of the Turkish government is responsible for interpreting the Constitution?
(A) Constitutional Court (B) Court of Cassation (C) Council of State (D) None of these
- Which organ of the Turkish government has the authority to enact laws on matters related to the organization and duties of the Armed Forces?
(A) Grand National Assembly (B) Council of Ministers (C) National Security Council (D) None of these
- What is the role of the French Council of State (Conseil d'État) in the legal system?
(A) Legislation (B) Criminal prosecutions (C) Administrative justice (D) None of these
- What is the name of the bicameral parliament in France, consisting of the National Assembly and the Senate?
(A) Le Parlement (B) Bundestag (C) La Chambre des Députés (D) None of these
- What is the minimum percentage of votes required in the National People's Congress to pass a constitutional amendment?
(A) Three-fifths majority (B) Two-third majority (C) Simple majority (D) None of these
- According to the 1962 Constitution of Pakistan, what was the consequence for the movers of a failed resolution for the removal of the President from office through impeachment?
(A) They would be disqualified from holding public office.
(B) They would be barred from political activities for a year.
(C) They would lose their seats in the Provincial Assembly. (D) None of these
- Which amendment in 1973 constitution of Pakistan empowered a check on floor crossing of legislators?
(A) 13th (B) 14th (C) 16th (D) None of these
- Under the Government of India Act, 1935, how was the federal legislature structured?
(A) Unicameral with federal assembly (B) Bicameral with a Federal Assembly and senate
(C) Bicameral with a Federal Council and Council of States (D) None of these
- How did the Government of India Act, 1935, address the representation of labour interests in the legislative process?
(A) Reserved seats for labour unions in the federal legislature
(B) Established a separate legislative body for labour-related issues

CONSTITUTIONAL LAW

17. **What constitutional doctrine in UK is associated with the principle that "what the Crown has done, the Crown can undo"?**
(A) Royal Prerogative (B) Doctrine of Ultra Vires (C) Doctrine of Desuetude (D) None of these
18. **According to the French Constitution, what mechanism allows the President to submit certain policy matters to a national referendum?**
(A) Constitutional Council Authorization (B) Article 11
(C) Council of Ministers' Decision (D) None of these
19. **What is the primary role of the Senate in the French bicameral system?**
(A) Scrutinizing government bills (B) Conducting impeachment proceedings
(C) Ratifying international treaties (D) None of these
20. **How are judges appointed and removed in Turkey?**
(A) Judges are appointed by the President and can only be removed by the Grand National Assembly.
(B) Judges are appointed by the Council of Ministers and can be removed by the President with Constitutional Court recommendations.
(C) Judges are appointed by the Supreme Board of Judges and Prosecutors and removal requires a disciplinary process overseen by the Constitutional Court. (D) None of these

PART-II

- NOTE: (i) Part-II is to be attempted on the separate Answer Book.**
(ii) Attempt ONLY FOUR questions from PART-II. ALL questions carry EQUAL marks.
(iii) All the parts (if any) of each Question must be attempted at one place instead of at different places.
(iv) Write Q. No. in the Answer Book in accordance with Q. No. in the Q.Paper.
(v) No Page/Space be left blank between the answers. All the blank pages of Answer Book must be crossed.
(vi) Extra attempt of any question or any part of the question will not be considered.

- Q. No. 2.** How did the Supreme Court's legal reasoning in the Dosso v. Federation of Pakistan case contribute to legitimizing the imposition of martial law, with a focus on its alignment with the Kelsenian theory? **(20)**
- Q. No. 3.** Examine the mechanism of checks and balances within Pakistan's parliamentary system. How does it ensure accountability and prevent abuse of power? **(20)**
- Q. No. 4.** Compare the federal structures of USA and India, emphasizing the similarities and differences in the division of powers between central and state governments. **(20)**
- Q. No. 5.** Critically analyze the salient features of the Russian Constitution and explain how they impact the country's laws and politics. **(20)**
- Q. No. 6.** Comprehensively examine how the system of checks and balances within the U.S. Constitution contributes to the separation of powers and safeguards against potential abuses of authority? **(20)**
- Q. No. 7.** Compare how the House of Lords and the House of Commons contribute to making laws in the UK. Explain the key differences in their roles and how these differences impact the legislative process. **(20)**
- Q. No. 8.** Critically analyze the historical and foundational aspects of the Objective Resolution 1949. Highlight its specific inclusion in the 1973 constitution, examining its ongoing influence in interpretation in the country's constitutional framework. **(20)**
